ANNEXES TO THE PROTOCOL ON RULES AND PROCEDURES ON THE SETTLEMENT OF DISPUTES

Annex 1

WORKING PROCEDURES OF THE PANEL

Under Article 15 (10)

1. The Panel shall meet in closed session. Any other party shall be present at the meetings only when invited by the Panel to appear before it.

2. The deliberations of the Panel and the documents submitted to it shall be kept confidential. Nothing in this Protocol shall preclude a Party to a Dispute from disclosing statements of its own position to the public.

3. Parties to a Dispute and any other party shall treat as confidential all information presented by another Party to a Dispute to the Panel which that Party to a Dispute has designated as confidential.

4. Where a Party to a Dispute or a Third Party submits a confidential version of its written submissions to the Panel, it shall also, upon request by a Party to a dispute, provide a non-confidential summary of the information contained in its submissions that could be disclosed to the public.

5. Before the first substantive meeting of a Panel with the Parties to a Dispute, the Panel shall request the Parties to a Dispute to submit written submissions presenting the facts of the case and arguments of the parties to the Dispute.

6. At the first substantive meeting of the Panel, the Complaining Party shall present its case and immediately thereafter the Party against whom the complaint is brought shall present its case.

7. Third Parties who notify their interest in a dispute to the DSB shall be invited in writing to present their views at a session of the first substantive meeting set aside for that purpose and may be present during the entire session.

8. The Parties to a dispute shall submit their written rebuttals to the Panel prior to the second substantive meeting. Formal rebuttals shall be made at the second substantive meeting of the Panel and the Party against whom a complaint is brought shall have the right to be heard first.

9. The Panel may at any time request the Parties to a Dispute for written or oral explanations at a meeting in which the Parties to the Dispute are present. Oral explanations shall be taken into account by the Panel only in so far as it is subsequently reproduced in writing and made available to other Parties. The Parties to the Dispute and any Third Party invited to present its views in accordance

with Article 13 of the Protocol on Rules and Procedures on the Settlement of Disputes, shall make available to the Panel a written version of their oral statements.

10. In the interest of transparency, presentations, rebuttals and statements including the submissions of the Parties to a Dispute shall be made available to the other Party or Parties without undue delay.

11. Each Party's written submissions, including any comments on the descriptive part of the report and responses to questions put by the Panel, shall be made available to the Party to the dispute or Third parties.

12. The Panel shall adopt a time table in accordance with Article 15 (2) and 15 (3) of the Protocol, taking into account the timetable proposed hereunder:

a)	receipt of first written submissions of the parties:	
	(i) Complaining Party:	3-6 weeks
	(ii) Party complained against:	2-3 weeks
b)	date, time and place of first substantive meeting with the Parties:	
	(i) Third Party sessions:	2 weeks
	(ii) Receipt of written rebuttals of the Parties:	2-3 weeks
c)	date, time and place of second substantive meeting with the Parties:	1-2 weeks
d)	Issuance of descriptive part of the report to the Parties:	2-4 weeks
e)	receipt of comments from the Parties on the descriptive part of the report:	2 weeks
f)	issuance of the interim report, including the findings and conclusions, to the parties:	2-4 weeks
g)	deadline for party to request review of part(s) of report:	1 week
h)	period of review by Panel, including	

	possible additional meeting with parties:	2 weeks
i)	issuance of final report to parties to the dispute:	2 weeks
j)	circulation of the final report to the State Parties:	3 weeks

Annex 2

Expert Review Groups

The following rules and procedures shall apply to expert review groups established in accordance with the provisions of paragraph 6 of Article 16 of the Protocol on the Rules and Procedures on the Settlement of Disputes:

(a) experts shall be under the Panel's authority. Their terms of reference and detailed working procedures shall be decided by the Panel, and they shall report to the Panel;

(b) participation as experts shall be restricted to persons of professional standing and experience in the field in question;

(c) citizens of Parties to the Dispute shall not serve as experts without the joint agreement of the Parties to the Dispute, except in exceptional circumstances where the Panel considers that the need for specialised scientific expertise cannot be fulfilled otherwise;

(d) government officials of Parties to the dispute shall not serve on an expert review group. Members of expert review groups shall serve as experts in their individual capacities and not as government representatives, nor as representatives of any organisation. Governments or organisations shall therefore not give them instructions with regard to matters before them;

(e) experts may consult and seek information and technical advice from any source they deem appropriate. Before an expert seeks information or advice from a source within the jurisdiction of a State Party, that expert shall inform the government of that State Party. Any State Party shall respond promptly and fully to any request by an expert for such information as the expert considers necessary and appropriate;

(f) the Parties to a Dispute shall have access to all relevant information provided to an expert, unless it is of a confidential nature. Confidential information provided to the expert shall not be disclosed without formal authorisation from the government, organisation or person providing the information. Where such information is requested from the expert but release of such information by the expert is not authorised, a non-confidential summary of the information will be provided by the government, organization or person supplying the information; and

(g) the expert shall submit a draft report to the Parties to the Dispute with a view to obtaining their comments, and taking them into account, as appropriate, in the final report, which shall also be issued to the parties to the Dispute when it is submitted to the Panel. The final report of the expert shall be advisory only.

Annex 3

CODE OF CONDUCT FOR ARBITRATORS AND PANELISTS

Article 1

Commitment to the Process

1. The arbitrators and Panelists shall abide by the terms of the Agreement.

2. The arbitrators and Panelists shall be independent and impartial, shall avoid direct or indirect conflict of interest and shall respect the confidentiality of the proceedings as provided in the Protocol on Rules and Procedures on the Settlement of Disputes so as to preserve the integrity and impartiality of the dispute settlement mechanism.

Article 2

Disclosure Obligations

1. To ensure the observance of this Code, each arbitrator and Panelist shall prior to the acceptance of their selection disclose the existence of any interest, relationship or matter that they could reasonably be expected to know and that is likely to affect or could raise justifiable doubt as to the arbitrator or Panelist´s independence or impartiality, including public statements of personal opinion on issues relevant to the Dispute and any professional relationship with any person or organisation with an interest in the case.

2. The disclosure obligation referred to in paragraph 1 of this Article shall be a continuing duty which requires an arbitrator or Panelist to disclose any such interests, relationships or matters that may arise during any stage of the proceeding. The arbitrator or Panelist shall disclose such interests, relationships or matters to the DSB in writing, for consideration by the Parties.

Article 3

Duties of Arbitrators and Panelists

1. Upon selection, an arbitrator or a Panelist shall perform his or her duties thoroughly and expeditiously throughout the course of the proceedings, with fairness and diligence.

2. An arbitrator or Panelist shall consider only those issues raised in the proceedings and necessary for an award. They shall not delegate this duty to any other person.

3. An arbitrator or Panelist shall not engage in *ex parte* contact concerning the proceedings.

4. Experts shall notify the Panel of arbitrators about any attempt to interfere in the proceedings or in the missions that are entrusted to them by any Party

Article 4

Independence and Impartiality of Arbitrators and Panelists

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5. An arbitrator or Panelist shall exercise his or her position without accepting or seeking instruction from any government, inter-governmental, or non-governmental organisation or any private source.

6. An arbitrator or Panelists shall not have intervened in any previous stage of the dispute assigned to him or her.

7. An arbitrator or Panelist shall be independent and impartial and shall not be influenced by self-interest, political considerations or public opinion.

8. An arbitrator or Panelist shall not, directly or indirectly, incur any obligation or accept any benefit that would in any way interfere with, or which could give rise to justifiable doubts as to, the proper performance of his/her duties.

9. An arbitrator or Panelist may not use his/her position on any Panel to advance any personal or private interests.

10. An arbitrator or Panelist shall not allow financial, business, professional, family or social relationships, to influence his or her conduct, judgment or impartiality.

Article 5
Confidentiality

1. Any current or former arbitrator or Panelist shall not at any time, disclose or use any confidential information concerning a proceeding or acquired during proceedings except for the purposes of those proceedings and shall not disclose or use any such confidential information to gain personal advantage or advantage for others or to adversely affect the interest of others.

2. An arbitrator shall not disclose the contents of an award prior to its publication.

3. A Panelist shall not disclose the contents of a Panel report prior to its circulation to the State Parties.

4. Any current or former arbitrator or Panelist shall not at any time disclose the deliberations of a Panel, arbitration proceedings or any Panelist's view.

5. Any current or former arbitrator or Panelist that breaches or discloses any confidential information concerning the proceedings shall be subject to sanctions as shall be deemed fit by the DSB.